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File No.: EXP202210210

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 22, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of Article 5.1.c of the GDPR and Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the respondent has installed a video surveillance camera in their garage space, located in a community garage at ***ADDRESS.1, without the approval of the Homeowners' Association, and that it is oriented towards passage areas of said community garage.

The camera is marked with a sign indicating a video surveillance area that is blank, without including the mandatory information about the data controller and the address to which to direct requests for exercising rights.

The complainant provides images of the camera's location and the video surveillance area sign installed next to the camera.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was returned as undeliverable on October 24 and 25, 2022; it was returned on November 2, 2022, as it was not collected by the responsible party.

The forwarding was reiterated on November 2, 2022, by certified postal mail, and was again returned on December 19, 2022, as "absent," on December 7 and 9, 2022.

The forwarding was reiterated on December 14, 2022, by certified postal mail, and was again returned on January 9, 2023, as "absent," on December 27 and 29, 2022.

No response has been received to this forwarding letter.

THIRD: On December 22, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

PRELIMINARY INVESTIGATION ACTIONS REPORT

INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

- Owners of the residence and garage space.

RESULT OF THE INVESTIGATION ACTIONS

On March 6, 2023, a query was made to the electronic headquarters of the Cadastre regarding the ownership of the residence at ***ADDRESS.1, which revealed that the owners are B.B.B. with NIF ***NIF.1, residing at ***ADDRESS.2, and A.A.A. with NIF ***NIF.2, residing at ***ADDRESS.3.

On March 6, 2023, a request for information was sent to ADMINISTRACIÓN DE FINCAS GABALDÓN to provide the ownership data of the residence and the garage space.

On March 24, 2023, a response was received from the property administrator, indicating that the community of owners' file lists A.A.A. and B.B.B. as the owners of the residence at ***ADDRESS.1 and of garage space number XXX, with notification address at ***ADDRESS.3.

FIFTH: On June 26, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

C/ Jorge Juan, 6

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28001 – Madrid

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3/9

SIXTH: Once the aforementioned initiation agreement has been notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the party being claimed.

Article 64.2.f) of the LPACAP - a provision of which the claimed party was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the claimed party, and the sanction that could be imposed. Therefore, considering that the claimed party has not made allegations against the initiation agreement of the file and in accordance with the provisions established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, a proposal for resolution.

In view of all that has been acted upon, the following are considered proven facts by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: It is stated, according to the declaration of the claiming party, that the claimed party has installed a surveillance camera in their parking space, located in a community garage at ***ADDRESS.1, without the approval of the Community of Owners, and directed towards passage areas of said community garage.

SECOND: It is stated, according to documentation provided in the file, that said camera is signposted with a sign indicating a monitored area that does not include the mandatory information about the data controller and the address to which to direct requests for the exercise of rights.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore the subject of said Regulation. In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined.

"processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, collation or interconnection, limitation, erasure or destruction;"

The images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported surveillance system is in accordance with the provisions of the GDPR.

III

In this case, from the documentation in the file, provided by the claiming party, it is evident that the claimed party has installed a surveillance camera in their parking space, directed towards passage areas of said garage, which is community-owned.

It is considered that the facts presented violate the provisions established in Article 5.1.c) of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

"Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)."

For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years:

C/ Jorge Juan, 6
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5/9

a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

IV

In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot be reasonably achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system in relation to

video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The images may be retained for a maximum period of one month, unless in those cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

5.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

6.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect risks arising from the implementation of the video surveillance system, evaluate them, and, where applicable, adopt appropriate security measures.

7.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the controller regarding the personal data processing it carries out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

The installation of a video camera entails the unavoidable obligation to notify the presence of the same through an informative device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR.

In this case, although a sign is installed next to the cameras, it is blank, without including the mandatory information about the data controller of the images and the address to which to direct requests for the exercise of rights.

It is considered that the facts presented violate what is established in Article 13 of the GDPR, which could constitute an infringement classified in Article 83.5 of the GDPR, which states the following:

C/ Jorge Juan, 6

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28001 – Madrid

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7/9

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover for the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects pursuant to Articles 12 to 22; (...)"

For the purposes of the statute of limitations, Article 74 “Minor Violations” of the LOPDGDD indicates: “Minor violations of a merely formal nature mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall prescribe after one year, particularly the following: a) Non-compliance with the principle of transparency of information or the right of information of the affected party by failing to provide all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

VI

The imposed fine must be, in each individual case, effective, proportionate, and deterrent, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

For all these reasons, it is considered that the corresponding sanction is an administrative fine of 300 euros for each of the assessed violations. It should be noted that the voluntary payment of the proposed amounts does not exempt from demonstrating the regularization of the video surveillance system in accordance with the current regulations.

VII

Article 58.2 d) of the GDPR states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”. In this case, the respondent must proceed, within 30 days from the receipt of this resolution, to:

- Remove the camera or video camera system from the current location or reorient it, so that the viewing of the images observed evidences that it does not capture
-common areas
- Complete the information provided in the information device in the monitored areas (at a minimum, the existence of a processing operation, the identity of the controller, and the possibility of exercising the rights provided in those provisions must be identified), placing this device in a sufficiently visible location, both in open and closed spaces.
- Ensure that the information referred to in Articles 13 and 14 of the GDPR is available to the affected parties.

It is warned that failure to comply with the requirements of this body may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and evaluated the criteria for scaling the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1,

- For a violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).
- For a violation of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

SECOND: NOTIFY this resolution to B.B.B..

THIRD: ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days, demonstrate compliance with:

- The removal of the camera or video camera system from the current location or its reorientation, so that the viewing of the images observed evidences that it does not capture
-common areas
- Complete the information provided in the information device in the monitored areas (at a minimum, the existence of a processing operation, the identity of the controller, and the possibility of exercising the rights provided in those provisions must be identified), placing this device in a sufficiently visible location, both in open and closed spaces.
- Maintain the information referred to in Articles 13 and 14 of the GDPR available to the affected

parties.

FOURTH: Warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved.

C/ Jorge Juan, 6

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28001 – Madrid

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9/9

by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by means of its payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, presenting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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